

25SMCV05730 25SMCV05730

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-21

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

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21, 2026

CASE NUMBER

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MATTER

Request

for Default Judgment

This case arises from a dispute between employer and employee. On November 3, 2025, Plaintiff Farhad Mojirsheibani ("Plaintiff") filed suit against Defendants Testudo Guard, Anthony Doe, and Does 1 through 10 alleging ten causes of action as follows:

1.

Constructive Discharge in Violation of Public Policy

2.

Negligent Hiring, Supervision, and Retention

3.

Failure to Pay Overtime Wages

4.

Failure to Timely Pay Wages When Due

5.

Failure to Timely Pay Final Wages at Separation

6.

Failure to Reimburse Business Expenses

7.

Failure to Provide Accurate Itemized Wage Statements

8.

Failure to Maintain Required Payroll and Employment
Records

9.

Failure to Provide Employment Records Upon Request

10. Personal

Liability for Wage Violations

Defendant Guard was served with a copy of the summons and complaint by
substitute service on January 5, 2026.

Default was entered against Guard on March 23, and Anthony Doe and the
other Doe Defendants were dismissed on March 24, 2026.

Plaintiff now seeks default judgment against Guard in the amount of
\$43,661.64, comprised of special damages in the amount of \$16,979; prejudgment
interest in the amount of \$989.94; costs in the amount of \$1,242.70; and
attorneys' fees in the amount of \$24,450.

A. Damages

Plaintiff's Complaint does not specify the amount of damages sought. (See Complaint.) The Court cannot award damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

As such, the Court cannot award any damages, as none were alleged in the operative Complaint.

Plaintiff has submitted with the default judgment package a statement of damages. As a threshold matter, there is no evidence that Plaintiff served Defendant with the Statement of Damages prior to entry of default. Moreover, the service of a Statement of Damages in lieu of alleging specific damages in the operative complaint is not apt. Generally, "A statement of damages cannot be relied on to establish a plaintiff's monetary damages on the defendant's default, except in a personal injury or wrongful death case." (Cal. Judges Benchbook, Civ. Proc. Before Trial § 16.16, p. 1924, emphasis added, citations omitted.) In Sporn v. Home Depot USA, Inc., the Court of Appeal determined:

Defendant also attacks the judgment under section 425.11, contending that plaintiff was required to serve it with a statement of damages and failed to do so. Section 425.11 applies to an action for personal injuries or wrongful death and was passed concurrently with the amendment to section 425.10 that prohibits stating the amount demanded in the complaint filed in such an action. Section 425.11 was enacted to satisfy the due process requirement that defendants be apprised of their exposure before a default may be taken. But here the complaint, which was not limited to personal injuries and did not claim wrongful death, expressly apprised defendant of the amount demanded. A statement of damages would have been superfluous and was not required under these circumstances.

(Sporn v. Home Depot USA, Inc. (2005) 126 Cal.App.4th 1294, 1302 [Plaintiff's claims of negligence, gross negligence, fraudulent misrepresentation and fraud

centered on the theft of his identity] [cleaned up].) Similar to the appellate court's determination in *Sporn v. Home Depot USA, Inc.*, this Court finds that Plaintiff's action is not one for personal injuries or wrongful death as defined pursuant to Code of Civil Procedure sections 425.10 and 425.11.

As such, Plaintiff will need to amend the complaint and serve it on Defendants before the Court can enter default judgment for any amount of damages.

B. Punitive Damages

Plaintiff asserts entitlement to punitive damages in an amount to be determined by the Court. (See Plaintiff's Damages Calculation.)

In determining how much to award in punitive damages, Plaintiff needs to provide evidence of Defendant's financial condition. (*Adams v. Murakami* (1991) 54 Cal.3d 105, 119.) "[T]he purpose of punitive damages is not served by financially destroying a defendant. The purpose is to deter, not to destroy." (*Id.* at p. 112.) "[A] punitive damages award is excessive if it is disproportionate to the defendant's ability to pay." (*Ibid.*, citations omitted.) For this reason, the United States Supreme Court has explained that there are constitutional limitations on punitive damages awards. (*State Farm Mut. Auto. Ins. Co. v. Campbell* (2003) 538 U.S. 408, 416.) "It has been recognized that punitive damages awards generally are not permitted to exceed 10 percent of the defendant's net worth." (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1166.)

Here, Plaintiff has not submitted any evidence regarding the Defendant's financial condition. As such, the Court cannot award punitive damages.

C. Prejudgment Interest

Plaintiff seeks prejudgment interest in the amount of \$989.94, representing "7% per annum on liquidated sums from the date each amount became due through judgment."

As

a threshold matter, because the Court cannot award any damages, as any damages award would exceed the amount demanded in the operative Complaint, the Court similarly cannot award prejudgment interest.

Moreover,

Plaintiff has not provided sufficient information regarding how the prejudgment interest was calculated for the Court to determine if the amount sought is correct. Notably, the Court does not know the principal balance(s) upon which Plaintiff seeks prejudgment interest, or the time period(s) such interest purportedly accrued.

D. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [....]"

Labor Code section 218.5

provides a statutory basis for the recovery of attorneys' fees to a prevailing employee in an action brought for the nonpayment of wages.

However,

Local Rule 3.214 provides the default reasonable attorneys' fees for a principal balance between \$10,000.01 and \$50,000 to be \$690 plus 3% of the excess over \$10,000.

Even

assuming the Court were able to award damages in the requested amount of \$16,979, 3% of \$6,979 is \$209.37 plus \$690 equals reasonable attorneys' fees in the amount of \$899.37.

While

Plaintiff is not strictly limited to this amount, the Court finds the attorneys' fee request, which represents over 30 hours of attorney time billed at an hourly rate of \$750 plus 10 hours of paralegal time, amounting to a fee total greater

than the total damages amount requested and over twenty-seven times the default reasonable attorneys' fees, to be patently unreasonable on its face. Although Plaintiff has provided attorney billing records, Plaintiff has not adequately explained why such a large deviation from the standard reasonable attorneys' fees is warranted in a straightforward default employment case like this.

The Court further finds the exorbitant fee request particularly egregious in light of how many errors and deficiencies there are in the default judgment package itself. There are typos on form CIV-100 (for example, counsel omitted the .70 for the costs requested and did not specify what the \$300 "other" fees represent), counsel only provided an attorney declaration essentially stating that default has been entered, but has provided no client declaration to substantiate the damages requested, the requested prejudgment interest is inadequately substantiated, and counsel inexplicably drafted a "statement of damages" that is not on form CIV-050, does not appear to have been served on Defendant at all, much less prior to entry of default, and is not generally apt in any event.

Plaintiff also requests \$1,242.70 in costs composed of \$435 in filing fees, \$507.70 in process server fees, and \$300 in "other" fees. (CIV-100.) In the Memorandum of Points and Authorities, Plaintiff explains that the \$300 is composed of \$150 for the jury fee deposit and \$150 "for service and mailing costs." However, mailing costs are expressly disallowed, pursuant to Code of Civil Procedure section 1033.5, subdivision (b)(3). As such, because the Court cannot discern how much of that \$150 is permissible service costs and how much is impermissible "mailing costs," the Court can only award costs in the amount of \$1,092.70.

CONCLUSION

For the foregoing reasons, Plaintiff's request for default judgment is denied.

DATED: August 21, 2026 /s/ _____

Michael
E. Whitaker

Judge
of the Superior Court